Lease for

Nelly's Italian Cafe

"Spring Hill Shopping Center"

Spring Hill, TN, Maury County Tennessee

Lease Date:

January 17, 2014

"SPRING HILL SHOPPING CENTER"
SPRING HILL, TENNESSEE
STORE LEASE

ARTICLE 1. BASIC LEASE PROVISIONS AND ENUMERATION OF EXHIBITS

SECTION 1.1 BASIC LEASE PROVISIONS

A. DATE OF LEASE: January 17, 2014

B. LANDLORD: Sell Family Partners

C. ADDRESS OF LANDLORD: Sell Family Partners
c/o Turner & Associates Realty, Inc.
P.O. Box 150326
Nashville, TN 37215

D. TENANT:
Ryan Hall and Danielle Macca Hall
2030 Sunflower Drive
Springhill, TN 37174
615-522-8392 615-587-3950 dmacca88@gmail.com

F. TENANT'S TRADE NAME:
Nelly's Italian Cafe

G. LEASE TERM: Five (5) YEARS (See Section 2.4)

H. RENEWAL OPTIONS: Two, Three year options

I. TENTATIVE DATE FOR DELIVERY OF LEASED PREMISES TO TENANT: Immediate Possession

J. RENT COMMENCEMENT DATE: April 1, 2014

K. **MONTHLY RENT**: SEE EXHIBIT C based on $17.00 / SF base rental plus $2 SF CAM/ Tax / Insurance

L. PERCENTAGE RENTAL: DELETED

M. PERMITTED USE: Pizza, Italian, Subs Sit Down and Take Out Restaurant

N. APPROXIMATE SIZE OF LEASED PREMISES: 1,200 Square Feet (20' X 60')

O. SECURITY DEPOSIT: $1,900

P. ADVANCED RENTAL: $1,200 (April 2014 rent)

SECTION 1.2 SIGNIFICANCE OF BASIC LEASE PROVISIONS.

Each reference in this Lease to any of the Basic Lease Provisions contained in Section 1.1 shall be deemed and construed to incorporate all of the terms set forth in each such Basic Lease Provision.

SECTION 1.3 ENUMERATION OF EXHIBITS. The Exhibits enumerated in this Section and attached to this Lease are incorporated in this Lease by this reference and are to be construed as part of this Lease.

Exhibit A. Site Plan

Exhibit B. Tenant Design Criteria.

Exhibit C. Schedule of Rent.

Exhibit D. Lease Plan

Exhibit E. Renewal Option

Exhibit F. Landlord's Work

ARTICLE 2. LEASED PREMISES AND TERM

SECTION 2.1 SHOPPING CENTER. Landlord owns shopping center situated in the County of Maury, City of Spring Hill, State of TENNESSEE, which Shopping Center and improvements thereon, are depicted on Exhibit A hereto and are hereinafter referred to as "SPRING HILL SHOPPING CENTER " or the "Shopping Center". It is agreed that the depiction of "SPRING HILL SHOPPING CENTER" on Exhibit A does not constitute a representation, covenant or warranty of any kind by Landlord, and Landlord reserves the right at anytime to change the number and location of buildings, building dimensions, the number of floors in any of the buildings, store dimensions, the identity and type of other stores and tenancies in "SPRING HILL SHOPPING CENTER", and the size and layout of the parking areas and facilities, including the right to add or subtract from their shape and size, as well as to alter their location, provided, however, that any change is not material in nature.

SECTION 2.2 LEASED PREMISES. Landlord hereby leases and demises to Tenant, and Tenant hereby accepts from Landlord, subject to the terms and provisions of this Lease, the store premises (hereinafter referred to as the "Leased Premises") more particularly described as follows:

ADDRESS is 5441 Main Street, Suite 4 Premises to consist of approximately 1,200 square feet of Floor Area, 20'X60' located in "SPRING HILL SHOPPING CENTER".

SECTION 2.3 LEASE TERM. The term of this Lease shall commence _____ (hereinafter referred to as the "Commencement Date"), and unless renewed or extended as hereinafter provided, shall end on the last day of the Fifth Full Lease Year, (hereinafter the "Termination Date"), unless sooner terminated (hereinafter referred to as the "Lease Term").

SECTION 2.4 LEASE YEAR. For the purposes of this Lease, the term "Lease Year" shall mean the period of twelve (12) consecutive calendar months commencing on the Commencement Date if the Commencement Date shall fall on the first day of a month, or if the Commencement Date falls on a date other than the first day of a month, then commencing on the first day of the first month following the Commencement Date, and each period of twelve (12) consecutive calendar months thereafter during the Lease Term. In the event that the Commencement Date shall fall on a date other than the first day of a month, the period of time from the Commencement Date to the first day of the first month following the Commencement Date shall be included in the first Lease Year.

ARTICLE 3. CONSTRUCTION AND DELIVERY OF LEASED PREMISES

SECTION 3.1 DELIVERY OF THE LEASED PREMISES. Tenant shall complete, on or before the Commencement Date, all of the work specified in Exhibit B, and any and all additional work (including, without limitation, the installation of fixtures and equipment) required so as to render the Leased Premises suitable for the Permitted Use specified in Section 1.1M hereof (collectively hereinafter sometimes called "Tenant's Work"). All fixtures and equipment shall be new or completely reconditioned. All work done by or on behalf of Tenant shall be performed in a good and workmanlike manner in compliance with all governmental requirements, in compliance with all of the terms of this Lease, and at such times and in such a manner as to not interfere with other work in progress and with the transaction of other business in the Shopping Center. Tenant's Work shall be performed only in accordance with complete plans and specifications theretofore submitted to and approved by Landlord, and in compliance with any and all of Landlord's design

criteria, including that which are set forth in Exhibit B, and further, in compliance with all applicable statues, ordinances, regulations and codes.

Tenant shall and hereby agrees to indemnify and hold Landlord, its agents, officers and employees harmless from and against any and all liability, claims, demands, expenses, fees, fines, penalties, suits, proceedings, actions and causes of action of any and every kind and nature arising or growing out of, or resulting from any work done by or on behalf of Tenant in or about the Leased Premises. This obligation to indemnify shall include legal and investigation costs and all other costs, expenses and liabilities incurred from the date the indemnitee receives notice that any claim has been made or may be made.

SECTION 3.2 OBLIGATIONS OF TENANT BEFORE LEASE TERM BEGINS. Tenant shall observe and perform all of its obligations under this Lease from and after the date upon which the Leased Premises are delivered to Tenant for its work, in the same manner as though the Lease Term began when the Leased Premises were delivered to Tenant (excepting only Tenant's obligations to operate its business and to pay Minimum Annual Rental, its pro-rata share of the operating expenses provided for in Section 17.4, and its pro-rata share of real estate taxes provided for in Article 7, all of which obligations shall commence absolutely as of the Rent Commencement Date).

In the event Tenant fails to open for business on or before the Commencement Date, Landlord, in addition to any and all other available remedies, may require Tenant to pay, in addition to all other rent and charges reserved herein, as liquidated damages and not as a penalty, for each day such failure to open continues, an amount equal to one-one hundred-eightieth (1/180) of the Minimum Annual Rental then due and payable.

For the purposes of this Lease, the "date of delivery" shall be as per Article 1, Section 1.1I

ARTICLE 4. PARKING; USE OF COMMON AREAS

Landlord grants to Tenant, its employees, agents, customers and invitees, a non-exclusive right to use, during the term of this Lease, the common areas, including parking areas, as shown on Exhibit A, which areas are acknowledged to be for use by such persons, along with others similarly entitled, for parking and for ingress and egress between the Leased Premises and all other portions of the Shopping Center and the adjoining streets, alleys and sidewalks.

Notwithstanding the foregoing, Tenant and Tenant's employees shall park their motor vehicles only in those portions of the parking area designated by Landlord for tenant and employee parking. Upon taking possession of the Leased Premises, Tenant shall furnish to Landlord the state automobile license numbers assigned to Tenant's motor vehicles and the motor vehicles of Tenant's employees. If Tenant or Tenant's employees shall park in portions of the parking area other than those areas designated for tenant and employee parking, and such vehicle or vehicles shall continue to be parked in such other areas after notice of such violation is given to Tenant by Landlord, Landlord may at any time thereafter, in addition to any other remedies it may have, have any such vehicle removed at Tenant's expense and levy such fines therefor as Landlord shall elect.

ARTICLE 5. MINIMUM RENTAL

Tenant agrees to pay as rental for the use and occupancy of the Leased Premises, at the times, in the manner and upon the conditions hereinafter provided, the following sums of money:

(a) MINIMUM ANNUAL RENTAL: Tenant, in consideration of said demise, does hereby covenant and agree with Landlord to pay to Landlord, without demand, deduction, set-off or counterclaim of any kind, the sums set forth on Exhibit C as Minimum Annual Rental for said Leased Premises, said Minimum Annual Rental to be payable in equal monthly installments, in advance, upon the first day of each and every month during the Lease Term, commencing upon the Rent Commencement Date and ending upon the Termination Date. If the monthly rental payments are not made by the **fifth day** of the month, Landlord may charge Tenant a five percent (5%) late payment charge or may call a default. In the event such rental shall commence on a day other than the first day of a month, then the monthly installment of Minimum Annual Rental for the period from the Commencement Date until the first day of the month next following shall be prorated accordingly. Notwithstanding the foregoing, Minimum Annual Rental for the first full month of the

Lease Term shall be paid upon the execution and delivery of this Lease.

All past due rentals, additional rentals, and/or other sums due to Landlord under the terms of this Lease shall bear interest at the maximum rate of interest which is allowed by law in the State of TENNESSEE from the due date until paid by Tenant. All rental provided for in this Lease (those hereinafter stipulated as well as said Minimum Annual Rental) shall be paid to:

Sell Family Partners and mailed to:

Sell Family Partners
C/O Turner & Associates Realty, Inc.
P.O. Box 150326
Nashville, TN 37215
615-383-7878
615-383-9878 fax

or to such other payee or at such other address as Landlord may designate, in writing, to Tenant.

ARTICLE 6. DELETED

ARTICLE 7. TENANT'S SHARE OF TAXES AND ASSESSMENTS

In addition to the Minimum Annual Rental provided for in Section 5 (a) hereof, Tenant agrees to pay to Landlord additional rent as follows:

(a) Tenant shall pay its proportionate share of all real property taxes, public charges and assessments (hereinafter referred to as "real estate taxes") (including the cost of any contest of any assessment by Landlord pursuant to subparagraph (c) hereof) which may be levied or assessed against the Shopping Center or any part thereof by any lawful authority, including any extraordinary and/or special assessments assessed or imposed upon the Shopping Center and any improvements thereon, which real estate taxes (without limiting the generality of the foregoing) shall include all school, sewer, and other taxes or charges and related costs and fees. Tenant's proportionate share of said real estate taxes shall be equal to the product obtained by multiplying such real estate taxes by a fraction, the numerator of which shall be the number of square feet of Floor Area in the Leased Premises and the denominator of which shall be the total number of square feet of gross leasable floor area in the Shopping Center, determined by Landlord as of the day of assessment. If at any time during the term of this Lease the methods of taxation prevailing at the commencement of the term hereof shall be altered so that in lieu of or as a supplement to or a substitute for the whole or any part of the real estate taxes now levied, assessed or imposed on the Shopping Center or any part thereof, there shall be levied, assessed or imposed (i) a tax, assessment, levy, imposition or charge, wholly or partially as a capital levy or otherwise, on the rents received therefrom, or (ii) a tax, assessment, levy (including but not limited to any municipal, state or federal levy), imposition or charge measured by or based in whole or in part upon the Shopping Center or any part thereof and imposed upon Landlord, or (iii) a license fee measured by the rent payable under this Lease and/or other leases in the Shopping Center, or (iv) a license fee or other charge measured by the number or area of parking spaces in the Shopping Center, then all such taxes, assessments, levies, impositions, fees and charges, or the part thereof so measured or based, shall be deemed to be included in the real estate taxes payable by Tenant pursuant to this Article 7 and Tenant shall pay and discharge the same as herein provided in respect to the payment of present real estate taxes.

(b) Tenant's proportionate share of real estate taxes during the term hereof shall be paid, in advance, upon billing therefor by Landlord, or, at Landlord's election, in monthly installments, in an amount equal to one-twelfth (1/12th) of Tenant's annual proportionate share of real estate taxes as estimated at any time and from time to time by Landlord. Upon confirmation of all tax bills and assessment bills attributed to any Lease Year during the term hereof, Landlord shall furnish Tenant with a written statement of the actual amount of Tenant's proportionate share of real estate taxes for such Lease Year. If the total amount paid by Tenant under this Article for any Lease Year during the term of this Lease shall be less than the actual amount due from Tenant for such Lease Year as shown on such statement, Tenant shall pay the deficiency to Landlord within ten (10) days after demand therefor by Landlord, and if the total amount paid by Tenant hereunder for any such Lease Year shall exceed such amount due from Tenant for such Lease Year, Tenant shall be entitled to offset the excess against payments next thereafter becoming due under this Article.

Landlord's and Tenant's obligations under this Article shall survive the expiration of the term of this Lease.

(c) If Landlord endeavors at any time to contest any tax or assessment against the Shopping Center or to obtain a reduction in the assessed valuation upon the Shopping Center for the purpose of reducing any such tax assessment, Tenant agrees to pay its proportionate share of Landlord's expenses in so contesting such tax or assessment, said proportionate share to be determined and paid in the same manner as set forth in this Article for real estate taxes. Under no circumstances shall Tenant have the right to withhold any payments to Landlord pursuant to this Article or any other Article of this Lease nor shall Landlord have any obligation to withhold the payment of any real estate-taxes levied or assessed by any lawful authority against the Shopping Center. If Tenant shall have paid an amount in excess of its proportionate share of taxes for any Lease Year as the result of a subsequent reduction in total taxes for such Lease Year, such excess (net of Landlord's expenses of obtaining the same) shall be refunded by Landlord to Tenant when all refunds to which Landlord shall be entitled from the taxing authority with respect to such Lease Year shall have been received by Landlord.

ARTICLE 8. SUBORDINATION AND ATTORNMENT

SECTION 8.1 SUBORDINATION OF LEASE. This Lease, and all rights of Tenant hereunder, are and shall be subject and subordinate at all times to the lien of any mortgages or any deeds of trust which may now or hereafter affect the Leased Premises or the Shopping Center, securing notes and bonds issued by Landlord, and to all renewals, modifications, consolidations, replacements and extensions thereof and all amendments and supplements to mortgages or deeds of trust. This clause shall be self-operative without the execution of any further instrument of subordination.

SECTION 8.2 ATTORNMENT. In the event any proceedings are brought for foreclosure of any mortgage or deed of trust covering the Leased Premises, or in the event of the exercise of the power of sale under any mortgage or deed of trust made by Landlord covering the Leased Premises, Tenant shall attorn to the purchaser upon any such foreclosure or sale and recognize such purchaser as the Landlord under this Lease. Tenant further agrees to execute any attornment agreement required to effectuate the provisions hereof, containing such provisions as such purchaser reasonably requires.

Notwithstanding the foregoing, any such mortgagee or trustee may at any time subordinate its mortgage or deed of trust to this Lease, without Tenant's consent, by notice in writing to Tenant and thereupon this Lease shall be deemed prior to such mortgage or deed of trust without regard to their respective dates of execution and delivery, and in that event, such mortgagee or trustee shall have the same rights with respect to this Lease as though it had been executed and delivered prior to the execution and delivery of the mortgage or the deed of trust and had been assigned to such mortgagee or trustee.

SECTION 8.3 CONFIRMATION OF SUBORDINATION. Tenant shall, upon request of any party in interest, execute promptly such instruments or certificates to carry out the intent of the various sections of this Article 8 as shall be requested by Landlord. If within ten (10) days after the date of a request by Landlord to execute any such instrument Tenant shall not have executed and delivered the same, Tenant hereby irrevocably appoints Landlord as its agent and attorney-in-fact with full power and authority to execute and deliver in the name of Tenant any such instruments or certificates, and Landlord may, at its option, cancel this Lease without incurring any liability on account thereof, and the term hereby granted is expressly limited accordingly.

SECTION 8.4 ESTOPPEL CERTIFICATE. Within ten (10) days after request therefor by the Landlord or any mortgagee or trustee under a mortgage or deed of trust covering the Leased Premises, or if, upon any sale, assignment or other transfer of the Leased Premises by Landlord, an estoppel certificate shall be requested from Tenant, Tenant at its expense shall deliver to Landlord in recordable form a statement to any proposed mortgagee or other transferee, or to Landlord certifying any facts that are then true with respect to this Lease Agreement, including without limitation (if such be the case) that this Lease Agreement is in full force and effect, that Tenant is in possession, that Tenant has commenced the payment of rent, that there have been no amendments to or modifications of this Lease Agreement and no prepayment of rental hereunder, and that there are no defenses or offsets to the Lease Agreement claimed by Tenant.

ARTICLE 9. ADDITIONAL CONSTRUCTION

Landlord hereby reserves the right at any time to make alterations or additions to, and to build additional stories on, the building in which the Leased Premises are contained and to build adjoining the same. Landlord also reserves the right to construct other buildings or

improvements, including elevated or double-deck parking facilities; from time to time and to make alterations or additions thereto, and to build additional stories on any such building or buildings, and to build adjoining the same.

ARTICLE 10. CONDITION OF LEASED PREMISES

Tenant's taking possession of the Leased Premises shall be conclusive evidence of Tenant's acceptance thereof and Tenant's acknowledgement that the same are in good order and satisfactory condition and that Landlord has complied with all of the terms and conditions of this lease with respect to the performance of Landlord's Work. Tenant agrees that no representations respecting the condition of the Leased Premises and no promises to decorate, alter, repair or improve the Leased Premises either before or after the execution hereof, have been made by Landlord or its agents to Tenant unless the same are contained herein and made a part hereof.

ARTICLE 11. REPAIRS AND MAINTENANCE

Landlord agrees to keep the Roof, foundations and exterior walls, except for windows, doors and door jambs located in the exterior walls of the Leased Premises in good condition and repair; provided, however that (i) Landlord shall not be liable to Tenant for any damage caused by the same being or becoming out of repair until it has had reasonable opportunity to have the same repaired after being notified in writing of the need of same by Tenant; (ii) Landlord shall not be liable for any damage to the roof, foundation or exterior walls caused by Tenant's act or negligence, and (iii) Landlord shall not be liable to Tenant for any damage to merchandise, trade fixtures or personal property of Tenant caused by water leakage from the roof, water lines, utilities serving the premises, sprinkler or heating and air-conditioning equipment. Tenant agrees, at Tenant's expense, to keep all other parts of the Leased Premises, including, but not limited to, the heating and air-conditioning equipment in good order and repair, and in a clean, sanitary and safe condition, including the replacement of equipment, fixtures and all plate glass, and to paint and decorate the Leased Premises when necessary in order to maintain at all times a clean and sightly appearance. If Tenant refuses or neglects to make any necessary repairs and/or to maintain the Leased Premises or any part hereof in a manner satisfactory to Landlord, Landlord shall have the right to make such repairs or perform such maintenance on behalf of and for the account of Tenant and, in such event, such work shall be paid for by Tenant as additional rental within ten (10) days of receipt of a bill therefor. Landlord shall replace any major heating and air components that need replacing due to reasons other than maintenance for a period of twelve months from turn over date. Notwithstanding anything contained herein to the contrary, Landlord agrees to repair/replace the HVAC unit if and when the unit fails provided the Tenant has properly maintained the unit. After such replacement, it shall be the responsibility of the Tenant to maintain repair and replace all HVAC components.

ARTICLE 12. FIXTURES, ALTERATIONS AND LEASEHOLD IMPROVEMENTS

SECTION 12.1 NO ALTERATIONS. Tenant shall not make or cause to be made any alterations, decorations, additions or improvements or install or cause to be installed any fixtures, machinery or equipment, in, on or to the Leased Premises, without first obtaining Landlord's written approval. Tenant shall present to Landlord detailed plans and specifications for such work each time approval is sought.

SECTION 12.2 LEASEHOLD IMPROVEMENTS. All alterations, decorations, additions and improvements made by Tenant, or made by Landlord on Tenant's behalf, shall remain the property of Tenant for the term of the Lease, and any extension or renewal thereof, and shall not be removed from the Leased Premises without the prior written consent of Landlord. All such alterations, decorations, additions and improvements shall remain upon the Leased Premises at the expiration or earlier termination of this Lease and shall thereupon become the property of Landlord, unless Landlord shall have given written notice to Tenant to remove all or any part of the same, in which event Tenant shall remove such alterations, decorations, additions and improvements and restore the Leased Premises to the same good order and condition in which it was at the commencement of this Lease. Should Tenant fail so to do, Landlord may do so, collecting from Tenant upon demand the cost and expense thereof as additional rent.

SECTION 12.3 TRADE FIXTURES AND EQUIPMENT. All trade machinery, trade equipment, trade fixtures, furniture and furnishings installed by Tenant in the Leased Premises may be removed at the expiration or earlier termination of this Lease or any renewal or extension thereof, provided Tenant shall not then be in default under this Lease, and provided further, that in the event of removal Tenant shall promptly restore the Leased Premises to their original order and

condition. Any such trade machinery, trade equipment, trade fixtures, furniture and furnishings not removed at or prior to such termination shall be and become the property of Landlord and may be retained by Landlord or disposed of by Landlord at Tenant's expense.

ARTICLE 13. TAXES ON LEASED PREMISES AND LEASEHOLD IMPROVEMENTS

Tenant shall pay before delinquency all taxes, assessments, license fees and public charges levied, assessed or imposed upon its business operations in the Leased Premises as well as upon its machinery, equipment, fixtures (including, without limitation all trade machinery, trade equipment and trade fixtures), furniture, furnishings, alterations, decorations, additions and improvements (including, but not limited to, those Tenant is required to make in accordance with the provisions of Section 3.1 hereof), stock in trade and other personal property in, on or upon the Leased Premises. If any such items of property are assessed with property of Landlord, then such assessment shall be divided between Landlord and Tenant so that Tenant shall pay only its equitable proportion of such assessment. Landlord shall determine the basis of so prorating any such assessments and such determination shall be binding upon both Landlord and Tenant.

ARTICLE 14. LIENS

Tenant agrees to pay promptly for any work done (or material furnished) by or on behalf of Tenant in or about the Leased Premises, and Tenant shall not permit or suffer any lien to attach to the Leased Premises or the Shopping Center by reason of any work, labor, services or materials performed at or furnished to, or claimed to have been performed at or furnished to, the Leased Premises by, or at the direction or sufferance of, Tenant or anyone holding the Leased Premises through or under Tenant, and Tenant shall promptly cause any such lien, or any claim therefor, to be released.

ARTICLE 15. LAWS AND ORDINANCES

SECTION 15.1 COMPLIANCE WITH LAWS. Tenant agrees to comply with all laws, ordinances, orders and regulations affecting the use and occupancy of the Leased Premises and the cleanliness, safety and operation thereof. Tenant agrees to comply with the regulations and requirements of any insurance underwriter, inspection bureau or similar agency with respect to the Leased Premises. Tenant also agrees to permit Landlord to comply with such recommendations and requirements with respect to that portion of the Leased Premises furnished or installed by Landlord.

SECTION 15.2 PROHIBITED CONDUCT. Tenant agrees not to (i) permit any immoral practice to be carried on or committed on the Leased Premises; (ii) make use of or allow the Leased Premises to be used for any purposes other than that specified in Section 1.1M hereof or that might invalidate or increase the rate of insurance therefor; (iii) keep or use or permit to be kept or used on the Leased Premises any flammable fluids or explosives without the prior written permission of Landlord; (iv) use the Leased Premises for any purpose whatsoever which might create or tend to create a nuisance or injure or tend to injure the reputation of the Leased Premises or of the Shopping Center; (v) deface or injure the Leased Premises; (vi) overload the floors in the Leased Premises; or (vii) commit or suffer any waste in the Leased Premises. Tenant shall not violate the terms of the Dollar General "Exclusive Use Covenant" attached hereto as Exhibit G. Any items found to be in conflict with said Exclusive shall be removed from the Premises and no longer sold. Upon written notice from Landlord of violation of the Exclusive Use Covenant, Tenant shall immediately remove items in question or Landlord may terminate this Lease.

ARTICLE 16. UTILITIES SERVICES

Tenant shall pay for all water, electricity, sewer, gas and telephone services used on or about the Leased Premises as and when charges therefor shall become due and payable, and for all costs and expenses involved in the care, maintenance, management, and use thereof. Tenant shall make all appropriate applications to the local utility companies and pay all required deposits for service for all utilities within **ten (10)** days after the date of this Lease. Notwithstanding the foregoing, Landlord may, at Landlord's option, elect to supply or make available any utility used and/or consumed at the Leased Premises, and Tenant agrees to purchase and pay for the same, as additional rent, every month during the term hereof. In no event shall Landlord be liable to Tenant in damages or otherwise for any interruption, curtailment or suspension of any utility services, nor shall Tenant be entitled to any abatement of rent by reason of the same.

In the event any utility or utility services are furnished to Tenant for which a lien

could be filed against the Leased Premises, the Shopping Center or any portion thereof (such as water rent or sewage disposal), Tenant shall, at Landlord's request, pay the cost thereof to Landlord as and when the charges therefor become due and payable, or in monthly installments if Landlord shall so direct; otherwise, Tenant shall deliver original receipted bills therefor to Landlord within thirty (30) days after the same are due and payable without interest or penalty.

ARTICLE 17. COMMON AREAS AND OPERATING EXPENSES

SECTION 17.1 DEFINITION OF COMMON AREAS. The "common areas", as herein referred to, shall consist of all parking areas, roadways, sidewalks, curbs, driveways, landscaped areas, loading platforms, roofs, canopies, washrooms, lounges and shelters, if any, and any other facilities which Landlord may make available from time to time for the common use and benefit of all of the tenants in "SPRING HILL SHOPPING CENTER", and their respective employees, agents, customers, licensees and invitees.

SECTION 17.2 MAINTENANCE AND USE OF COMMON AREAS. Landlord shall, subject to events beyond its reasonable control, maintain, or cause to be maintained, the common areas. Landlord shall have and hereby reserves at any time or times during the term of this Lease: (i) the right to redesignate and to change the size, location, shape and arrangement of the common areas and to promulgate and enforce rules and regulations in connection with the use thereof; (ii) the right to grant to others the nonexclusive use of the common areas; and (iii) the right to close all or any portion of the common areas including, but not by way of limitation, the parking areas, parking facilities, approaches, exits, entrances, roadways and all other common and public facilities to such extent as may, in the opinion of Landlord, be necessary to prevent a dedication thereof or the accrual of any rights therein in any person, provided, however, that any change shall not adversely affect Tenant's business.

SECTION 17.3 DEFINITION OF OPERATING EXPENSES. As used in this Lease, the term "operating expenses" means the total of all items of Landlord's expense relating to insuring, operating, managing, equipping, policing and protecting, lighting, repairing, replacing and maintaining the Shopping Center, including the common areas, in as good condition as when originally installed (including equipment depreciation used in the maintenance of the Shopping Center, including the common areas). Such costs shall include, but not be limited to, pest extermination, supervised fire sprinkler alarm service, removal of trash, snow, ice, rubbish, dirt and debris, costs of planting, replanting and replacing flowers and landscaping and supplies required therefor, and all cost of utilities used in connection therewith, including, but not by way of limitation, all costs of maintaining lighting facilities, signage, and storm drainage systems, and all premiums for liability, property damage, fire with extended coverage endorsements and Worker's Compensation insurance, wages, unemployment taxes, social security taxes, personal property taxes, fees for required licenses and permits, management fees, and administrative and overhead costs equal to 15% of all of the foregoing and all other operating expenses.

SECTION 17.4 TENANT'S SHARE OF OPERATING EXPENSES.

Tenant shall pay to Landlord, in monthly installments in amounts estimated at any time and from time to time by Landlord, Tenant's proportionate share of the operating expenses, which proportionate share shall be the product obtained by multiplying such operating expenses by a fraction, the numerator of which shall be the number of square feet of Floor Area in the Leased Premises, and the denominator of which shall be the total number of square feet of gross leasable floor area in the Shopping Center.

SECTION 17.5 ADJUSTMENT OF TENANT'S SHARE OF OPERATING EXPENSES. Upon written request, Landlord shall furnish to Tenant a statement showing the total operating expenses for the period just expired, the amount of Tenant's share of such operating expenses and payments made by Tenant during such period under Section 17.4 hereof. If Tenant's share of such operating expenses for such period shall exceed Tenant's payments so made, Tenant shall pay to Landlord the deficiency within ten (10) days after receipt of said statement. If Tenant's payments shall exceed Tenant's share of such operating expenses as shown on such statement, Tenant shall be entitled to offset the excess against payments next thereafter becoming due under Section 17.4 hereof.

ARTICLE 18. DAMAGE TO LEASED PREMISES

If the Leased Premises shall be partially damaged by a fire or casualty covered under insurance policies carried by Landlord pursuant to Article 17 hereof, Landlord shall, upon receipt of

the insurance proceeds, repair and restore the same; provided, however, that the obligation of Landlord to repair and restore the Leased Premises as herein provided shall be limited to such restoration as can be paid for in full by such insurance proceeds as shall actually be received by Landlord, free and clear from collection by any mortgagees and after deducting the cost and expense, if any, including attorney's fees of settling with the insurer, and provided further, that in no event shall Landlord be responsible for the repair, restoration or replacement of any of Tenant's alterations, decorations, additions, improvements, stock in trade, machinery, equipment, fixtures, furnishings, furniture, carpeting, wall coverings, drapes and equipment, the repair, restoration or replacement of which shall be the sole responsibility of Tenant.

If (a) the Leased Premises by reason of a fire or casualty are rendered wholly untenantable or partially untenantable to the extent of twenty percent (20%) of the value thereof, (b) the Leased Premises are damaged as a result of a risk which is not covered by Landlord's insurance, or (c) the Leased Premises are damaged in whole or in part during the last SIX MONTHS (6) MONTHS of the term of this Lease or any renewal thereof, or (d) all or any portion of the common areas or other buildings within the Shopping Center are damaged, whether or not the Leased Premises are damaged, to such an extent that the Shopping Center cannot, in the reasonable judgement of Landlord, be operated as an integral unit, then in any such event, Landlord may elect either to repair the damage or to cancel this Lease. If Landlord shall elect to terminate this Lease, Landlord shall so notify Tenant in writing within ninety (90) days after the date of the casualty. In the event of termination, this Lease shall expire at the end of the calendar month in which such notice of termination is given, and Tenant shall vacate and surrender the Leased Premises to Landlord on or before said date. In the event that Landlord shall not serve notice of termination, Landlord and Tenant shall commence their respective obligations to repair and restore as soon as is reasonably possible and shall prosecute the same to completion with all due diligence.

ARTICLE 19. TENANT'S INSURANCE

Tenant shall keep in full force and effect a Broad Form Comprehensive Liability Insurance policy with respect to the Leased Premises during the entire term hereof, with minimum limits of not less than **ONE MILLION DOLLARS ($1,000,000.00)** for personal injury or death arising out of any one occurrence, and not less than **ONE MILLION DOLLARS ($1,000,000.00)** for damage to property arising out of any one occurrence. If the term of this Lease is in excess of two (2) years, Landlord may reasonably increase the minimum limits of the insurance required pursuant to this Article 19.

Tenant further agrees to carry sprinkler leakage and damage insurance (if required), insurance against vandalism and malicious mischief, and insurance against fire and such other risk as are from time to time included in standard broad form extended coverage insurance, for the full insurable value of Tenant's stock in trade, machinery, equipment, fixtures, furniture, furnishings, wall coverings, floor coverings, draperies, equipment and other items of personal property located on or within the Leased Premises, and all alterations, decorations, additions and improvements made in and about the Leased Premises. Tenant shall also carry plate glass insurance if plate glass is now or hereafter installed on the Leased Premises.

All policies of insurance required to be maintained by Tenant hereunder shall name Landlord, any person, firms or corporations designated by Landlord, and Tenant as insured, shall name Landlord as additional insured, and shall contain an express waiver of any right of subrogation against Landlord.

Tenant agrees that all insurance Tenant is required to maintain under this Lease shall be in insurance companies lawfully doing business in the State of TENNESSEE and of good credit satisfactory to Landlord, and that the original policies or true copies or certificates evidencing all of the aforementioned insurance coverage shall be delivered to Landlord within twenty (20) days prior to the commencement of the term hereof and shall contain a clause that the insurer will not cancel or change the insurance without first giving the Landlord twenty (20) days' prior written notice thereof and, further, that new or renewal policies shall be delivered by Tenant to Landlord at least twenty (20) days before the expiration date or sooner termination of each policy.

If Tenant shall not comply with its covenants made in this Article, Landlord may, at its option, cause insurance as aforesaid to be issued and in such event, Tenant agrees to pay the premiums for such insurance promptly upon Landlord's demand, as additional rent.

ARTICLE 20. INDEMNIFICATION

SECTION 20.1 INDEMNIFICATION. Tenant shall and hereby agrees to

indemnify and hold Landlord, its agents, officers and employees harmless from and against any and all liability, claims, demands, expenses, fees, fines, penalties, suits, proceedings, actions, and causes of action of any and every kind and nature arising or growing out of or in any way connected with Tenant's use, occupancy, management or control of the Leased Premises and/or Tenant's operations or activities in the Shopping Center. This obligation to indemnify shall include legal and investigation costs and all other costs, expenses and liabilities incurred from the date the indemnitee receives notice that any claim or demand has been made or may be made.

SECTION 20.2 WAIVER OF CLAIMS. Landlord, its agents and employees, shall not be liable and Tenant hereby waives, to the extent permitted by applicable law, all claims for any damage to persons or property sustained by Tenant or any person claiming through Tenant located in or about the Leased Premises, or for the loss of or damage to any property of Tenant or of others by theft or otherwise, whether caused by other tenants or persons in the Shopping Center or in or about the Leased Premises, occupants of adjacent property, or the public, or caused by operations related to the construction of any private, public or quasi-public work. All property of Tenant kept or stored in or about the Leased Premises shall be so kept or stored at the risk of Tenant only and Tenant shall hold Landlord harmless from any claims arising out of damage to the same or damage to Tenant's business, including subrogation claims by Tenant's insurance carrier.

ARTICLE 21. ASSIGNMENT, SUBLETTING AND OWNERSHIP

SECTION 21.1 NO ASSIGNMENT OR SUBLETTING. Tenant shall not transfer, assign, sublet, enter into license or concession agreements, change ownership or hypothecate this Lease or Tenant's interest in and to the Leased Premises without first obtaining the written consent of Landlord. Any attempted transfer, assignment, subletting, license or concession agreement, change of ownership or hypothecation without the Landlord's written consent shall be void and confer no rights upon any third party. The prohibitions of this Section shall be construed to refer to any acts or events referred to whether they occur by operation of law, legal process, receivership, bankruptcy or otherwise. Notwithstanding any transfer, assignment, subletting, license or concession agreement, change of ownership or hypothecation, Tenant shall remain fully liable under this Lease for the performance of all of the terms, covenants and provisions hereof to be performed by Tenant unless a release is granted by Landlord in writing pursuant to assignment.

SECTION 21.2 FURTHER TRANSFERS. The consent by Landlord to any transfer, assignment, subletting, license or concession agreement, change of ownership or hypothecation shall not constitute a waiver of the necessity for such consent to any subsequent attempted transfer, assignment, subletting, license or concession agreement, change of ownership or hypothecation.

SECTION 21.3 ASSUMPTION OF OBLIGATIONS. Any transfer, assignment, subletting, license or concession agreement or hypothecation to which there has been consent shall be by instrument in writing, in form satisfactory to Landlord, and shall be executed by the transferor, assignor, sublessor, licensor, concessionaire, hypothecator or mortgagor, and the transferee, assignee, sublessee, licensee, concessionaire, or mortgagee shall agree in writing for the benefit of Landlord, to assume, to be bound by, and to perform all the terms, covenants and conditions of this Lease to be done, kept and performed by Tenant. One executed copy of such written instrument shall be delivered to Landlord. Failure to first obtain in writing Landlord's consent or failure to comply with the provisions of this Section shall operate to prevent any such transfer assignment, subletting, license, concession agreement or hypothecation from becoming effective.

SECTION 21.4 OWNERSHIP. If control of Tenant or Tenant's business changes at any time during the term hereof, then Landlord may, at its option, by giving Tenant fifteen (15) days prior written notice, declare such a change a default under this Lease, thereby entitling Landlord to terminate this Lease and/or exercise such other remedies as Landlord may have in the event of a default by Tenant under this Lease.

SECTION 21.5 PAYMENT OF FEES. Tenant agrees to reimburse Landlord for any attorney's fees and costs incurred by Landlord in conjunction with the processing and documentation of any such requested transfer, assignment, subletting, licensing or concession agreement, change of ownership or hypothecation of this Lease or Tenant's interest in and to the Leased Premises. Said reimbursement shall be capped at $500.00.

ARTICLE 22. ACCESS TO PREMISES

Tenant agrees that Landlord, its agents, employees or servants, or any person

authorized by Landlord, may enter the Leased Premises for the purpose of (a) inspecting the condition of same; (b) making such repairs, additions or improvements thereto, or to the building of which they are a part, as Landlord may elect or be required to make; (c) exhibiting the same to prospective purchasers of the building and/or prospective tenants who may want to lease space in the shopping center in which the Leased Premises are contained; and (d) placing notices and/or For Lease signs, during the last four (4) months of the term hereof, in and upon said premises at such places as may be determined by Landlord. Tenant agrees that neither Tenant nor any person within Tenant's control will interfere with such notices.

ARTICLE 23. EVENTS OF DEFAULT; REMEDIES OF LANDLORD

(a) The occurrence of any of the following shall constitute a default under or breach of this Lease by Tenant:

(i) A failure by Tenant to commence business with a full staff of employees and a full stock of merchandise within the time period specified in Section 2.3 hereof;

(ii) A failure by Tenant to pay when due any installment of rent, or any other payment required to be made by Tenant hereunder;

(iii) The discontinuance by Tenant of the conduct of business in the Leased Premises;

(iv) A failure by Tenant to observe and perform any other provision of this Lease to be observed or performed by Tenant, which failure shall continue for ten (10) days after written notice thereof from Landlord to Tenant; provided, however, that if the nature of the failure is such that the same cannot reasonably be cured within such ten (10) day period, Tenant shall not be deemed to be in default if Tenant shall within such period commence the cure thereof and thereafter shall diligently prosecute the same to completion;

(v) (aa) The entry of a decree or order for relief by a court having jurisdiction in respect of Tenant or any guarantor of this Lease (any and all such guarantors hereinafter individually referred to as "Guarantor") in an involuntary proceeding under present or future federal bankruptcy laws, or any other applicable federal or state bankruptcy, insolvency or other similar law, or (bb) The appointment of, or consent by Tenant or any Guarantor to the appointment of, a receiver, liquidator, assignee, custodian, trustee, sequestrator (or similar official) for Tenant or any Guarantor or for part of the Leased Premises (or Tenant's property located therein) or for any substantial part of Tenant's or any Guarantor's property, or (cc) The entry (and continuance unstayed and in effect for a period of sixty (60) consecutive days) of an order or decree winding-up or liquidating Tenant's or any Guarantor's affairs, or (dd) The commencement by Tenant or any Guarantor of a voluntary proceeding under present or future federal bankruptcy laws, or any other applicable federal or state bankruptcy, insolvency or other similar law, or (ee) The consent by Tenant or any Guarantor to the taking possession by a receiver, liquidator, assignee, trustee, custodian, sequestrator (or other similar official) or any part of the Leased Premises (or Tenant's property located therein) or any substantial part of Tenant's or any Guarantor's property, or (ff) The making by Tenant or any Guarantor of any assignment for the benefit of creditors, or (gg) The failure of Tenant or any Guarantor generally to pay Tenant`s or any Guarantor's debts as such debts become due, or (hh) The taking of corporate action by Tenant or any Guarantor in furtherance of any of the foregoing, or (ii) Tenant permitting the Leased Premises or Tenant's effects or interests therein to be taken, levied upon or attached under legal process against Tenant.

(b) In the event of any default under this Lease as hereinabove set forth or otherwise, Landlord may, at any time thereafter, with or without notice or demand, and without limiting Landlord in the exercise of any other remedy at law or in equity or otherwise which Landlord may have by reason of the default, do one or more of the following:

(i) Landlord may elect to terminate this Lease and all rights of Tenant hereunder by giving written notice of such termination to Tenant, whereupon this Lease shall terminate on the date specified in such notice of cancellation, and Tenant shall thereupon surrender the Leased Premises to Landlord, but Tenant shall remain liable to Landlord as hereinafter provided.

In such event Landlord may recover from Tenant: (aa) the amount of any unpaid rent which had been earned at the time of such termination; plus (bb) all damages Landlord incurred by reason of Tenant's default, including the cost of recovering the Leased Premises, attorneys' fees and, in addition, the worth at the time of such termination of the amount of rent reserved in this Lease for the remainder of the Lease Term, all of which amount shall be immediately due and payable from Tenant to Landlord; plus (cc) any other amount necessary to compensate Landlord for all detriment

caused by Tenant's failure to perform its obligations under this Lease; and (dd) at Landlord's election, such other amounts in addition to or in lieu of the foregoing as may be permitted from time to time by applicable law.

The term "rent" as used in this Article 23 shall mean the Minimum Annual Rental and all other sums required to be paid by Tenant pursuant to the terms of this Lease. For the purpose of calculating the amount of rent due Landlord from Tenant after any default by Tenant and re-entry of the Leased Premises or termination of this Lease by Landlord, all such sums, other than the Minimum Annual Rental, shall be computed on the basis of the average monthly amount thereof which accrued during the twenty-four (24) month period immediately preceding the default, except that if such sums other than Minimum Annual Rental have been payable for a period of time less than such twenty-four (24) month period, then such sums shall be computed on the basis of the average monthly amount accruing during such shorter period.

(ii) Landlord may continue this Lease in full force and effect, regardless of whether or not Tenant has abandoned the Leased Premises, and this Lease will continue in effect as long as Landlord does not terminate this Lease as hereinabove provided, and Landlord shall have the right to collect rent as and when due. In addition:

(aa) During the period that Tenant is in default, Landlord may elect to enter the Leased Premises and relet the same, or any part thereof. Any rentals received by Landlord from such reletting shall be applied: first, to the payment of indebtedness other than rent due hereunder from Tenant to Landlord; second, to the payment of any cost of such reletting; third, to the payment of the cost of any alterations and repairs to the Leased Premises; fourth, to the payment of the rent due and unpaid hereunder; and the residue, if any shall be held by Landlord and applied in payment of future rent as the same may become due and payable hereunder. If that portion of the rentals received from such reletting during any month which is to be applied to the payment of rent hereunder is less than the rent payable for that month by Tenant hereunder, then Tenant shall pay such deficiency to Landlord. Such deficiency shall be calculated and paid monthly. Tenant shall also pay to Landlord, as soon as ascertained, any costs and expenses incurred by Landlord in such reletting or in making such alterations and repairs not covered by the rentals received from such reletting of the Leased Premises.

(bb) Neither Landlord's acts of maintenance or preservation or efforts to relet the Leased Premises, nor the appointment of a receiver upon the initiative of the Landlord to protect Landlord's interests under the Lease, shall constitute a termination of Tenant's right to possession unless Landlord notifies Tenant that Landlord has elected to terminate this Lease.

(iii) Landlord may re-enter the Leased Premises and remove all persons and property from the Leased Premises; such property may be removed and stored in a public warehouse or elsewhere at the cost of and for the account of Tenant.

No re-entry or taking possession of the Leased Premises by Landlord pursuant to this Article 23 shall be construed as an election to terminate this Lease, unless a written notice of termination has been given to Tenant. Notwithstanding any reletting because of any default of Tenant without termination by Landlord, Landlord may at any time after such reletting elect to terminate this Lease because of any such default.

The parties hereby waive trial by jury in any action, proceeding or counterclaim brought by either of the parties hereto against the other on any matters whatsoever arising out of or in any way connected with this Lease, the relationship of Landlord and Tenant, Tenant's use or occupancy of the Leased Premises or any claim of injury or damage. In the event Landlord commences any proceedings for nonpayment of Minimum Annual Rental or any other charge due hereunder, Tenant will not interpose any counterclaim of whatever nature or description in any such proceedings.

Tenant hereby expressly waives any and all rights of redemption granted by or under present or future laws in the event of Tenant being evicted or dispossessed for any cause or in the event of Landlord obtaining possession of the Leased Premises by reason of the violation by Tenant of any of the provisions of this Lease or otherwise.

In the event of a breach or threatened breach by Tenant of any provision of this Lease, Landlord shall have the right of injunction as if other remedies were not provided for herein. The rights and remedies given to Landlord in this Lease are distinct, separate and cumulative remedies, and the exercise of any of them shall not be deemed to exclude Landlord's right to exercise any or all of the others or those which may be permitted by law.

Tenant expressly waives any right of defense which it may have to claim a merger and neither the commencement of any action or proceeding nor the settlement thereof or entering of

judgement therein shall bar Landlord from bringing subsequent actions or proceedings from time to time.

ARTICLE 24. REMEDIES CUMULATIVE

No mention in this Lease of any specific right or remedy shall preclude Landlord from exercising any other right or from having any other remedy or from maintaining any action to which it may otherwise be entitled either at law or in equity; and the failure of Landlord to insist in any one or more instances upon a strict performance of any covenant of this Agreement or to exercise any option or right herein contained shall not be construed as a waiver or relinquishment for the future of such covenant, right or option, but the same shall remain in full force and effect unless the contrary is expressed in writing by Landlord.

ARTICLE 25. SELF-HELP

If Tenant shall fail to perform any of its obligations under this Lease as and when said performance shall be required, Landlord may, (but shall not be obligated to do so), in addition to any other rights it may have at law or equity, cure such default on behalf of Tenant, and Tenant shall reimburse Landlord for any sums paid or costs incurred by Landlord in curing such default, including interest, at the maximum rate of interest which is allowed by law in the State of TENNESSEE, on all sums advanced by Landlord as aforesaid, which sums and costs together with interest thereon shall be deemed additional rent payable hereunder by Tenant.

ARTICLE 26. DELETED

ARTICLE 27. TENANT'S CONDUCT OF BUSINESS

SECTION 27.1 OBLIGATION TO OPEN.

Tenant covenants and agrees that it will open for business in the Leased Premises within thirty (30) days of the delivery of possession of the Leased Premises by Landlord to Tenant. Tenant agrees to continuously operate its business in 100% of the Leased Premises, and at all times in a first-class manner consistent with reputable business standards and practices. Tenant agrees that it will at all times employ a full staff of trained personnel and keep and maintain within and upon the Leased Premises a full stock of merchandise and trade fixtures to service and supply the usual and ordinary demands and requirements of its customers and that it will keep the Leased Premises in a neat, clean and orderly condition. Tenant also agrees to conduct Tenant's business only under the trade name set forth in Section 1.1F hereof. Tenant further agrees to keep the Leased Premises open and to operate the business conducted thereon no less than 35 HOURS PER WEEK.

SECTION 27.2 TENANT'S ADVERTISING.

Tenant agrees to refer to the Shopping Center as ""SPRING HILL SHOPPING CENTER", Spring Hill, TN, TENNESSEE in designating the location of the Leased Premises in all newspaper or other advertising, stationery, other printed material and all other references to Tenant's location; to include the address and identity of its business activity in the Leased Premises in all advertisements made by Tenant in which the address and identity of any other business activity of like character conducted by Tenant within the metropolitan area in which the Shopping Center is located shall be mentioned, and to use, in such advertisement, only Tenant's trade name as set forth in Section 1.1F hereof.

SECTION 27.3 TENANT'S SIGNAGE.

In order to assure orderly and aesthetically coordinated signage throughout the Shopping Center, Tenant shall install or cause to be installed, at Tenant's sole cost and expense, a sign of individual letter type and to be approved b the Landlord prior to installation. Within ninety (90) days from the date hereof, Tenant shall, at its sole cost and expense, deliver to Landlord drawings for said sign, designating the size sign selected by Tenant from choices provided by Landlord. Said drawings shall be subject to Landlord's prior written approval as to size, nature, design and aesthetic properties and shall conform with such other sign design criteria as Landlord shall deliver to Tenant following the execution of this Lease. Tenant shall not place or suffer to be placed or maintained on any exterior door, wall or window of the Leased Premises or on the roof of the Leased Premises any sign (except as hereinabove provided), awning or canopy, or any advertising matter or other thing of any kind, and will not place or maintain any decoration,

lettering or advertising matter on the glass (interior or exterior) of any window or door of the Leased Premises without first obtaining Landlord's written approval. Tenant further agrees to maintain in good condition and repair at all times such sign, awning, canopy, decoration, lettering, advertising matter or other thing as may be approved by Landlord as aforesaid.

ARTICLE 28. RULES AND REGULATIONS

Tenant covenants and agrees that Tenant will comply with all rules and regulations established by Landlord from time to time for the operation of "SPRING HILL SHOPPING CENTER", including but not limited to the following:

(a) No awning or other projections shall be attached to the outside walls of the Leased Premises or the building of which they form a part, without the prior written consent of Landlord;

(b) All loading and unloading of goods shall be done in the areas and through the entrances designated for such purpose by Landlord;

(c) Tenant shall provide for Tenant's own garbage and trash removal; provided, however that should Landlord elect to supply or cause to be supplied a trash removal service, Tenant agrees to purchase and pay Landlord for the same and to deposit Tenant's trash as and where directed by Landlord;

(d) No loudspeakers, televisions, phonographs, radios, flashing lights or other devices shall be used in a manner so as to be heard or seen outside of the Leased Premises without the prior written consent of Landlord;

(e) No auction, fire, bankruptcy or selling-out sales shall be conducted on or about the Leased Premises without the prior written consent of Landlord;

(f) Tenant shall keep Tenant's display windows illuminated each and every day of the term hereof from dusk until 10 p.m.

(g) The outside areas immediately adjoining the Leased Premises shall be kept clear at all times by Tenant, and Tenant shall not place nor permit any obstructions, garbage, refuse, merchandise or displays in such areas;

(h) Nothing is to be attached or placed on the roof or exterior walls of the Leased Premises without Landlord's prior approval, and Tenant's access to the roof shall be limited to maintenance of equipment installed with Landlord's approval and inspections for damage. Tenant shall not enter the roof at any time without the prior written approval of Landlord;

(i) Tenant shall use, at Tenant's expense, such pest extermination contractor as Landlord may direct and at such intervals as Landlord may require, said expense to be included as part of operating expenses defined in Article 17 hereof;

(j) Tenant, its employees and/or its agents, shall not solicit business in the parking or other common areas, nor shall Tenant, its employees and/or agents, distribute any handbills or other advertising matter in or on automobiles parked in the parking or other common areas;

(k) In the event Landlord installs a supervised fire sprinkler alarm system for the protection of all or part of the Shopping Center (including the Leased Premises), Tenant agrees to pay its prorata share of the monthly alarm service charge, such charge to be included as part of the operating expenses defined in Article 17 hereof;

(l) Tenant shall not make any use of the Leased Premises except as expressly permitted under Section 1.1M, and Tenant shall not operate any instrument, apparatus, equipment or device which emits an odor or causes a noise discernible outside of the Leased Premises or which may be deemed offensive in nature. TENANT SHALL NOT VIOLATE ARTICLE 15.2 HEREOF.

Landlord shall, for the enforcement of the covenants, conditions and agreements now or hereafter made a part of this Article 28 (referred to as "Rules and Regulations") have all remedies in this Lease provided for breach of the provisions hereof.

ARTICLE 29. EMINENT DOMAIN

SECTION 29.1 CONDEMNATION. If twenty percent (20%) or more of the Leased Premises shall be acquired or condemned by right of eminent domain for any public or quasi-public use or purpose, then either Landlord or Tenant may, at their election, terminate this Lease by giving the other party ninety (90) days' prior written notice of their election to do so, and in such event all rentals shall be apportioned and adjusted as of the date of termination.

If ten percent (10%) or more of the Shopping Center shall be acquired or

condemned by right of eminent domain for any public or quasi-public use or purpose, then Landlord may, at its election, terminate this Lease by giving Tenant ninety (90) days' prior written notice of its election to do so, and in such event all rentals shall be apportioned and adjusted as of the date of such termination.

If the Lease shall not be terminated as aforesaid, then it shall continue in full force and effect, and Landlord shall within a reasonable time after possession is physically taken (subject to delays due to shortage of labor, materials, or equipment, labor difficulties, breakdown of equipment, governmental restrictions, fires, or other casualties or other causes beyond the control of the Landlord) repair or rebuild what remains of the Leased Premises for Tenant's occupancy; provided, however that the obligation of Landlord to restore the Leased Premises as herein provided shall be limited to such restoration as can be paid for in full by such condemnation proceeds as shall actually be received by Landlord, free and clear from collection by any mortgagees, and after deducting the cost and expense, if any, including attorney's fees, of settling with the condemning authority. An appropriate proportion of the Minimum Annual Rental and other charges shall be abated according to the nature and extent of the injury to the Leased Premises until such repairs and rebuilding are completed, and thereafter for the balance of the Lease Term.

SECTION 29.2 AWARDS. Landlord reserves, and Tenant waives for the benefit of Landlord and assigns to Landlord, all rights and damages on account of any taking or condemnation or any act of any public or quasi-public authority for which damages are payable. Tenant shall execute such instruments of assignment as Landlord requires, join with Landlord in any action for the recovery damages, if requested by Landlord, and turn over to Landlord any damages recovered in any proceeding. If Tenant fails to execute instruments required by Landlord or undertake such other steps as requested, Landlord shall be deemed the duly authorized irrevocable agent and attorney-in-fact for the Tenant to execute such instruments and undertake such steps on behalf of Tenant.

ARTICLE 30. ATTORNEY'S FEES

In the event that at any time during the term of this Lease or thereafter, Landlord shall institute any action or proceedings against Tenant relating to the provisions of this Lease or any default by Tenant hereunder, then Tenant shall reimburse Landlord for the expense of such attorney's fees and disbursements as are incurred therein by Landlord provided Landlord prevails in the legal proceedings.

ARTICLE 31. SALE OF PREMISES BY LANDLORD

In the event of any sale or exchange of the Leased Premises by Landlord, Landlord shall be and is hereby entirely freed and relieved of all liability under any and all of its covenants and obligations contained in or derived from this Lease arising out of any act, occurrence or omission relating to the Leased Premises or this Lease.

ARTICLE 32. NOTICES

Any notices, demands, consents or approvals required or permitted to be made or given hereunder shall be in writing and shall be made or given by personal delivery or be sent by certified or registered mail addressed, if to Landlord, at the address at which the last rental payment was made or required to be made, and if to Tenant, addressed to Tenant at "SPRING HILL SHOPPING CENTER" 5441 Main Street Suite 4, Spring Hill, TN 37174, or to such other address as was last specified respectively by notice by Landlord or Tenant. Notice sent by mail shall be deemed given on the date of mailing thereof.

ARTICLE 33. SUCCESSORS AND ASSIGNS

All covenants, promises, conditions, representations and agreements herein contained shall be binding upon, apply and inure to the parties hereto and their respective heirs, executors, administrators, successors and assigns, it being understood and agreed, however, that the provisions of Article 21 hereof are in nowise impaired by this Article 33.

ARTICLE 34. REPRESENTATIONS

It is understood and agreed by Tenant that Landlord and Landlord's agents have made no representations or promises with respect to the Leased Premises or the making or entry into this Lease, except as in this Lease expressly set forth, and that no claim or liability, or cause for termination, shall be asserted by Tenant against Landlord for, and Landlord shall not be liable by

reason of, the breach of any representations or promises not expressly stated in this Lease.

ARTICLE 35. EFFECT OF WAIVER

The failure of Landlord to insist upon strict performance by Tenant of any of the covenants, conditions, and agreements of this Lease shall not be deemed a waiver of any of Landlord's rights or remedies and shall not be deemed a waiver of any subsequent breach or default by Tenant in any of the covenants, conditions and agreements of this Lease. No surrender of the Leased Premises shall be effected by Landlord's acceptance of rental or by any other means whatsoever unless the same be evidenced by Landlord's written acceptance of such a surrender.

ARTICLE 36. HOLDING OVER

If Tenant remains in possession of the Leased Premises after the expiration of this Lease (or any renewal thereof) without a new lease reduced to writing and duly executed, even if Tenant shall have paid, and Landlord shall have accepted, rent in respect to such holding over, Tenant shall be deemed to be occupying the Leased Premises as a Tenant from year to year, subject to all of the covenants, conditions and agreements of this Lease (except those relating to options to renew or extend) at a rental that shall be ONE HUNDRED FIFTY percent (150%) of the rental in effect at the time the Lease (or renewal period) expired.

ARTICLE 37. RELATIONSHIP OF PARTIES

The parties hereto agree that it is their intention hereby to create only the relationship of Landlord and Tenant, and no provision hereof, or act of either party hereunder, shall ever be construed as creating the relationship of principal and agent, or of partnership, or of joint venture or other enterprise between the parties hereto.

ARTICLE 38. FINANCING STATEMENT

Tenant shall not enter into, execute or deliver any financing agreement that can be considered as a priority to any lease, mortgage or deed of trust upon the Leased Premises, and in the event Tenant does so execute or deliver such financing agreement such action on the part of Tenant shall be considered a breach of the terms and conditions of this Lease entitling Landlord to such remedies as are provided herein. Tenant agrees that Landlord shall have an express contractual lien (in additions to any statutory lien) for the performance of all of Tenant's obligations pursuant to this Lease, upon all of the fixtures, machinery, equipment, goods, inventory and personalty which are, or hereafter may be, placed in or upon the Leased Premises.

ARTICLE 39. COVENANT OF QUIET ENJOYMENT

Upon payment of the rentals and performance of covenants upon Tenant's part to be performed hereunder, Tenant shall and may peaceably and quietly have, hold and enjoy the Leased Premises and improvements thereon during the Lease Term, subject to the terms and conditions of this Lease and any mortgages, and deeds of trust to which this Lease is subordinate, and subject to the powers of eminent domain of public and quasi-public authorities.

ARTICLE 40. SECURITY DEPOSIT

Tenant has deposited with Landlord the security deposit specified in section 1.1O (the "Security Deposit"), the receipt whereof, if by check subject to collection, is hereby acknowledged. The Security Deposit shall be held by Landlord, without liability for interest thereon, to secure the full, faithful and punctual performance by Tenant of each and every term, covenant and condition of it under this Lease. In the event of any default by Tenant, Landlord may apply all or any part of the Security Deposit to cure the default or to reimburse Landlord for any sum THAT Landlord may spend by reason of the default. In the case of every such application Tenant shall, on demand, pay to Landlord the sum so applied which shall be added to the Security Deposit so that the same shall be restored to its original amount. If at the end of the Term Tenant shall not be in default under this Lease, the Security Deposit, or any balance thereof, shall be returned to Tenant. Tenant hereby waives the benefit of any provision of law requiring the Security Deposit to be held in escrow or trust; the Security Deposit being deemed to be the property of Landlord. Landlord may deliver or assign the funds deposited hereunder by Tenant to the purchaser of Landlord's interest in the Leased Premises in the event that such interest be sold, and thereupon Landlord shall be discharged from any further liability with respect to such deposit.

ARTICLE 41. BROKERS

Tenant warrants and represents that it has not had any negotiations with or dealt with any realtor, broker, agent or finder in connection with the negotiation and execution of this Lease, OTHER THAN TURNER & ASSOCIATES REALTY, INC.

ARTICLE 42. LEASE STATUS

At any time and from time to time, upon request of Landlord, Tenant will execute, acknowledge and deliver to Landlord an instrument prepared by Landlord, stating, if the same shall be true, that (i) this Lease is a true and exact copy of the lease between the parties hereto and that there are no amendments hereof (or stating what amendments there may be); (ii) that this Lease is then in full force and effect; (iii) that to the best of Tenant's knowledge there are then no offsets, defenses or counterclaims with respect to the payment of rent reserved hereunder or in the performance of the other terms, covenants and conditions hereof on the part of Tenant to be performed; (iv) that as of such date no default has been declared hereunder by either party hereto and that Tenant at that time has no knowledge of any facts or circumstances which it might reasonably believe would give rise to a default by either party; (v) that no notice of an assignment of Landlord's interest in this Lease has been given to Tenant, and (vi) that rent has not been paid by Tenant more than thirty (30) days in advance. If within ten (10) days after the date of a request by Landlord to execute any such instrument Tenant shall not have executed and delivered the same, Tenant hereby irrevocably appoints Landlord as its agent and attorney-in-fact with full power and authority to execute and deliver in the name of Tenant any such instrument, and Landlord may, at its option, cancel this Lease without incurring any liability on account thereof, and the term hereby granted is expressly limited accordingly.

ARTICLE 43. RECORDING

Tenant shall not record this Lease without the written consent of Landlord; provided however, upon the request of either party hereto, the other party shall join in the execution of a memorandum or so-called "short form" lease for the purpose of recordation. Said memorandum or short form lease shall describe the parties, the Leased Premises and the term of this Lease and shall incorporate this Lease by reference. Tenant agrees to pay all costs and expenses in connection with or prerequisite to such recording.

ARTICLE 44. FORCE MAJEURE

In the event either party hereto shall be delayed or hindered in or prevented from the performance of any act required hereunder by reason of strikes, lockouts, labor troubles, inability to procure materials, failure of power, restrictive governmental laws or regulations, riots, insurrection, war or other reason of a like nature not the fault of the party delayed in performing work or doing acts required under the terms of this Lease, then performance of such act shall be excused for the period of delay and the period for the performance of any such act shall be extended for a period equivalent to the period of such delay. The provisions of this Article shall not operate to excuse Tenant from the prompt payment of Minimum Annual Rental, additional rent or any other payments required by the terms of this Lease.

ARTICLE 45. APPLICABLE LAW

The laws of the State of TENNESSEE shall govern the validity, performance and enforcement of this Lease. The invalidity or unenforceability of any provision of this Lease shall not affect or impair any other provision.

ARTICLE 46. EXECUTION OF LEASE BY LANDLORD

The submission of this document for examination and negotiation does not constitute an offer to lease, or a reservation of, or option for, the Leased Premises and this document shall become effective and binding only upon the execution and delivery hereof by Landlord and by Tenant. All negotiations, considerations, representations and understanding between Landlord and Tenant are incorporated herein and may be modified or altered only by agreement in writing between Landlord or its successors and Tenant, and no act or omission of any employee or agent of Landlord or of Landlord's broker, if any, shall alter, change or modify any of the provisions hereof.

ARTICLE 47. AGENCY OR INDEPENDENT CONTRACTS

Any service which Landlord is required or elects to furnish under this Lease may be furnished by any agent employed by Landlord or by an independent contractor, and the cost to Landlord of such agent or independent contractor shall be included in any cost chargeable to Tenant for such services.

ARTICLE 48. LIMITATION OF LIABILITY

Notwithstanding anything contained herein to the contrary, there shall be absolutely no personal liability on persons, firms or entities which constitute Landlord with respect to any of the terms, covenants, conditions and provisions of this Lease, and Tenant agrees to look solely to the interest of Landlord, its successors and assigns, in Landlord's Tract for the satisfaction of each and every remedy of Tenant in the event of default by Landlord hereunder. Such exculpation of personal liability is absolute and without any exception whatsoever.

ARTICLE 49. MORTGAGEE'S APPROVAL

If any mortgagee or prospective mortgagee of the Shopping Center shall at any time require any modification of the terms and provisions of this Lease as a condition to such financing as Landlord may desire, then Landlord shall have the right to cancel this Lease if Tenant fails or refuses to approve and execute such modification(s) within twenty (20) days after Landlord's request therefor provided that such modification does not adversely change any material provisions of this Lease. Upon such cancellation by Landlord, this Lease shall be null and void and neither party shall have any liability either for damages or otherwise to the other by reason of such cancellation.

ARTICLE 50. JOINT AND SEVERAL LIABILITY

If Tenant is a partnership or other business organization the members of which are subject to personal liability, the liability of each such member shall be deemed to be joint and several.

ARTICLE 51. CAPTIONS

Captions throughout this Lease are for convenience and reference only and the words contained therein shall in no way be held to explain, modify, amplify or aid in the interpretation, construction or meaning of the provisions of this Lease.

ARTICLE 52. Special Conditions: Tenant is taking the space in AS IS condition

IN WITNESS WHEREOF, the parties hereto have executed this Lease as of the day and year first above written.

LANDLORD: Sell Family Partners

By: _____ (SEAL)

Date: 02-18-2014

Kimberly D. Hensley 2-18-14
My Comm Exp 8-29-17

KIMBERLY D. HENSLEY
STATE OF TENNESSEE NOTARY PUBLIC
WASHINGTON COUNTY

WITNESS for Landlord: _____

TENANT: Ryan Hall and Danielle Macca Hall

By: _____ By: _____

Date: 1-17-14 Date: 1-17-14

WITNESS for Tenant: _____

By: _____ (SEAL)

Date: 1/17/14

ANGELA C. HEERING
STATE OF TENNESSEE NOTARY PUBLIC
DAVIDSON COUNTY, TENN.
My Commission Expires JAN. 9, 2016

~~[AFFIX CORPORATE SEAL]~~

GUARANTORS:

Guarantors hereby join in the execution of this Lease Agreement for the purpose of guaranteeing all of the obligations, liabilities and undertakings of the Tenant as set forth in this Lease Agreement.

409-59-4716
SSN

_____
Ryan Hall

415-65-9670
SSN

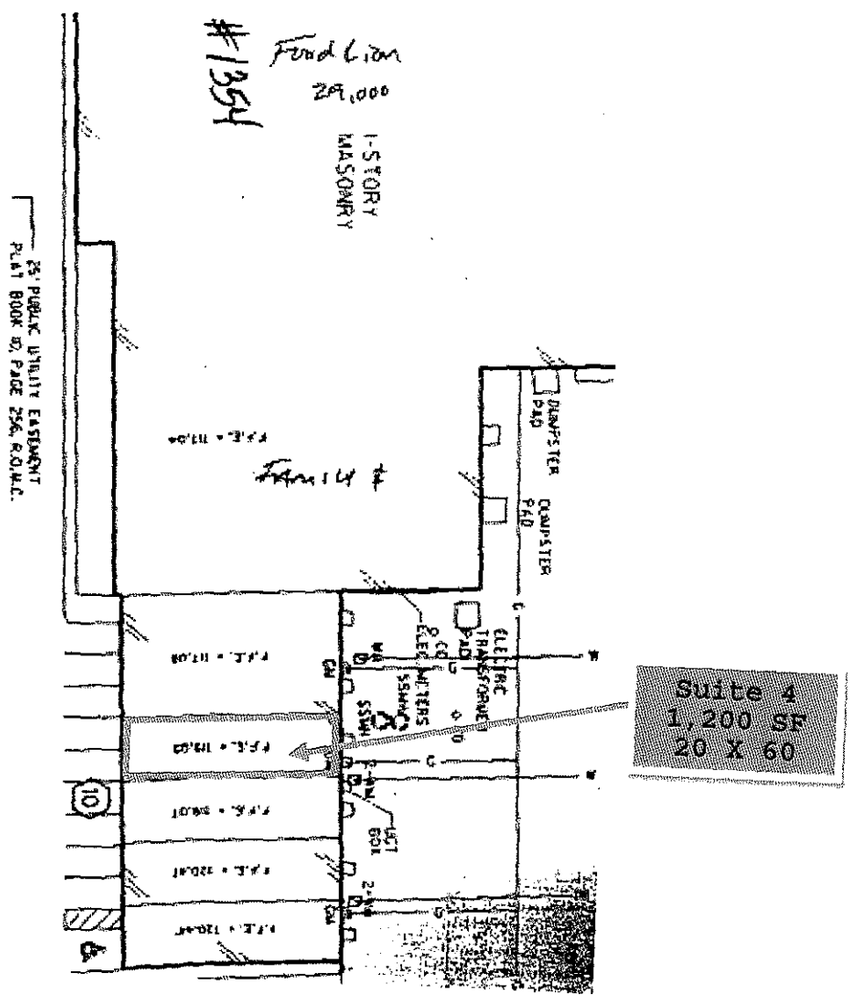
_____
Danielle Macca Hall

EXHIBIT A

RIDER TO STORE LEASE
DATED January 17, 2014

Sell Family Partners ("LANDLORD")
AND
Nelly's Italian Cafe ("TENANT")

"SPRING HILL SHOPPING CENTER"
Spring Hill, TENNESSEE



	Landlord	02-18-61	Date
DH	Tenant	1-17-14	Date
DH	Guarantor	1-17-14	Date
RH	Tenant	1-17-14	Date
RH	Guarantor	1-17-14	Date

EXHIBIT B

RIDER TO STORE LEASE
DATED January 17, 2014

Sell Family Partners ("LANDLORD")
AND
Nelly's Italian Cafe ("TENANT")

"SPRING HILL SHOPPING CENTER"
Spring Hill, TENNESSEE

Tenant Design Criteria

Tenant shall provide to Landlord, within TEN **(10)** working days of final execution hereof, **PLANS SUFFICIENT FOR PERMITTING, DETAILING ALL BUILDOUT INCLUDING, BUT NOT LIMITED TO, ALL MECHANICAL, PLUMBING, ELECTRICAL AND ROOF MOUNTED EQUIPMENT SPECIFICATIONS AND REQUIREMENTS IF ANY CHANGES TO THIS AREA ARE TO BE MADE**.

Further, Tenant shall, at Tenant's sole expense:

1) Secure Building Permit for interior buildout, if not designated as Landlord responsibility.
2) Install any and all partitions necessary or convenient to Tenant's needs,
3) Paint the Leased Premises.
4) Install floor covering in the Leased Premises, AS NEEDED.
5) Do any and all other work necessary, not specifically listed as a requirement of the Landlord in Exhibit "F" incorporated herein,
6) **Secure a Certificate of Occupancy from the City of Spring Hill, Tn.**
7) **Contract with Landlord's roofer, and only Landlord's roofer, to make the roof cuts and to flash in Tenant's roof mounted equipment.**

JSM	Landlord	2-18-14	Date
DH	Tenant	1-17-14	Date
DH	Guarantor	1-17-14	Date
RH	Tenant	1-17-14	Date
RH	Guarantor	1-17-14	Date

EXHIBIT C
RIDER TO STORE LEASE
DATED January 17, 2014

Sell Family Partners ("LANDLORD")
AND
Nelly's Italian Cafe ("TENANT")

"SPRING HILL SHOPPING CENTER"
Spring Hill, TENNESSEE

Lease Term	Monthly Base Rent	C.A.M.*/Tax/ Insurance	Total
4/1/2014 – 9/31/2014	$1,200.00	$0	$1,200.00
10/1/2014 – 9/31/2015	$1,700.00	$0	$1,700.00
10/1/2015 – 9/31/2016	$1,700.00	$200.00*	$1,900.00
10/1/2016 – 9/31/2017	$1,751.00	$200.00*	$1,951.00
10/1/2017 – 9/31/2018	$1,800..00	$200.00*	$2,000.00
10/1/2018 – 3/31/2019	$1,860.00	$200.00*	$2,060.00

*Subject to change pursuant to terms of this Lease

Option Renewal

Rent to be negotiated at time of renewal. Said negotiated amount not to be less than year three base rent above. **BASE RENTAL AND TOTAL PAYMENT AMOUNTS ABOVE ARE DEEMED TO BE CORRECT HOWEVER, SHOULD A DISCREPANCY ARISE IN THE CALCULATIONS ABOVE, THE RENT STRUCTURE PER SECTION 1.1 TO THIS LEASE SHALL TAKE PRECEDENCE.**

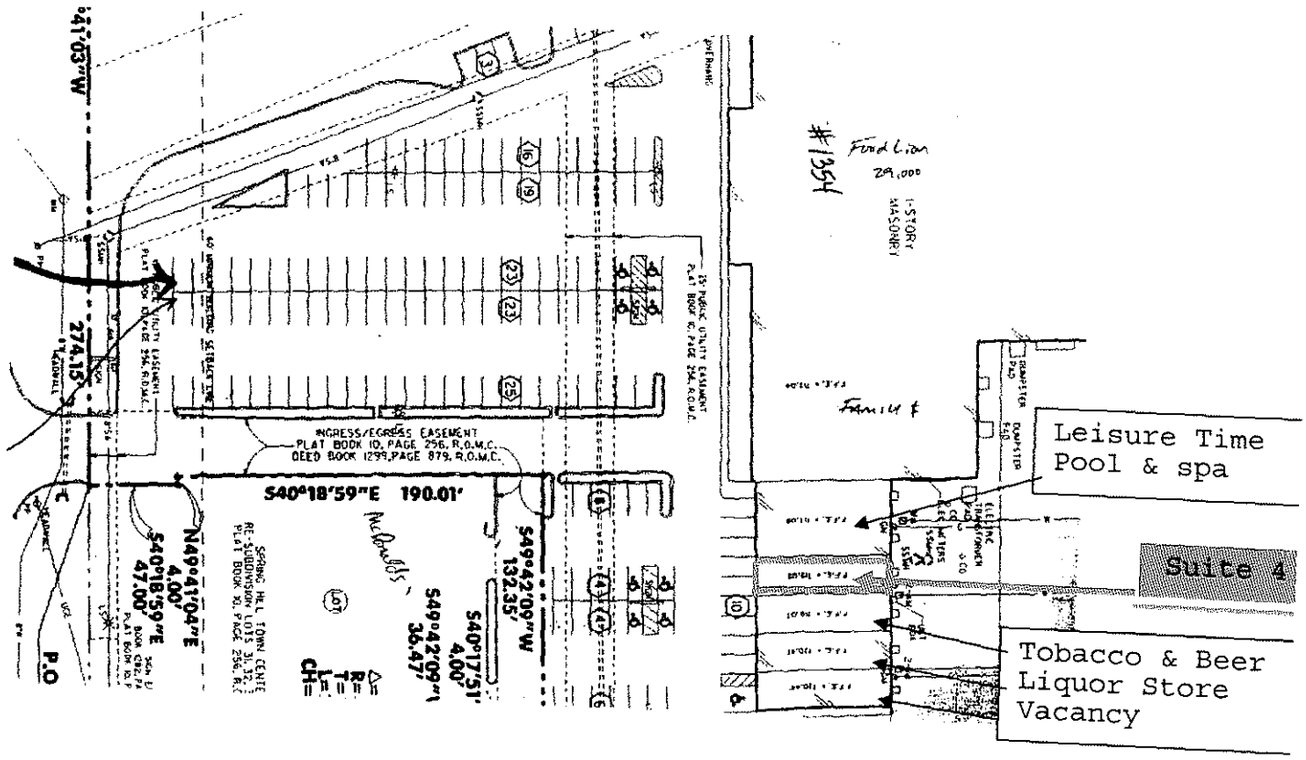
Landlord 2-17-14 Date
RH, DH Tenant 1-17-14 Date
RH, DH Guarantor 1-17-14 Date

EXHIBIT D

RIDER TO STORE LEASE
DATED January 17, 2014

Sell Family Partners ("LANDLORD")
AND
Nelly's Italian Cafe ("TENANT")

"SPRING HILL SHOPPING CENTER"
Spring Hill, TENNESSEE



Landlord 2-8-14 Date

Tenant 1-17-14 Date

Guarantor 1-17-14 Date

EXHIBIT E

RIDER TO STORE LEASE
DATED
("LANDLORD")
AND

Nelly's Italian Cafe ("TENANT")

"SPRING HILL SHOPPING CENTER"
Spring Hill, TENNESSEE

Renewal Option: Anything herein contained to the contrary notwithstanding, this Lease may be renewed and extended for TWO (2) additional periods of Three YEARS (hereinafter referred to as the "Renewal Term") beyond the expiration of the term herein created, the Tenant shall give to the Landlord written notice of its election not to extend or renew, such notice shall be given to Landlord not less than three (3) months or more than six (6) months prior to the expiration of the initial term hereof or the renewal term as the case may be.
The rental for said renewal term(s) shall be negotiated at the time of renewal. If Landlord and Tenant fail to agree on the rental rate, the Lease shall terminate at the end of the initial term. Base rental for the option period shall not be lower than the year three initial term base rate.

___ Landlord 2-18-14 Date
R.U. DH Tenant 1-17-14 Date
R.K. DH Guarantor 1-17-14 Date

EXHIBIT F
RIDER TO STORE LEASE
DATED January 17, 2014

Sell Family Partners ("LANDLORD")
AND
Nelly's Italian Cafe ("TENANT")

"SPRING HILL SHOPPING CENTER"
Spring Hill, TENNESSEE

LANDLORD'S WORK

Landlord to deliver the demised premises to Tenant as a vanilla shell, per Landlord's plan, including the following: AS IS

- ~~Glass store fronts with double glass door~~
- ~~Aluminum rear service door~~
- ~~3-ton HVAC~~
- ~~Drop ceiling diffusers / 1,200 square feet~~
- ~~1 low, wall mounted return housing air filter / 1,200 square feet~~
- ~~"Hot Water on Demand System" (or like system)~~
- ~~1 ADA compliant restroom~~
- ~~Commode, sink, handicap handrails, mirror, light/ fan fixture~~
- ~~2x4 Drop ceiling grid (white bars)or $1.00/s.f. credit~~
- ~~2x4 Standard white acoustical ceiling tile or see credit above~~
- ~~2x4 recessed fluorescent light fixtures per 1,200 square feet~~
- ~~one wired as security night-light~~
- ~~4 duplex electrical outlets per demising wall~~
- ~~1 GFI protected duplex outlet in restroom~~
- ~~Walls covered with sheet-rock, taped, sanded and ready for paint~~
- ~~Applicable to side walls~~
- ~~Rear wall may be block~~
- ~~Concrete floor, cleaned and swept, ready for tenant's floor covering application~~
- ~~2 emergency lighted exit signs, per code if required~~
- ~~storefront door~~
- ~~rear service door 3 phase, 200AMP electrical service per shop~~
- ~~1 electrical panel~~
- ~~TENANT'S BUILDING SIGNAGE TIED DIRECTLY TO TENANT'S ELECTRICAL PANEL~~
- ~~Telephone conduit to the rear of each shop.~~
- ~~Tenant responsible for service wiring from outside terminal~~.
-

_____ Landlord 2-18-14 Date
R.W. DH Tenant 1-17-14 Date
R.B. DH Guarantor 1-17-14 Date

"SPRING HILL SHOPPING CENTER"

SPRING HILL, TENNESSEE

STORE LEASE

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